

pendens] be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust.

Defendant requests attorney fees in the amount of \$4,200.00 based on their time spent preparing the initial motion, and expected time spent preparing the reply and attending the hearing on the matter, which totaled seven hours. (Garabedian Decl. ¶ 5.) Counsel indicates their rate is \$600 per hour. (*Id.* ¶¶ 4-5.) Plaintiffs do not oppose or even address this request in their opposition.

The Court finds that Defendant Singh is the prevailing party as his motion is being granted. The Court also finds that Defendant's request for attorney's fees is reasonable. As such, the Court awards Defendant \$4,200 in attorney's fees.

Conclusion

Defendant's motion to expunge the lis pendens is **granted**. As the prevailing party, Defendant is awarded \$4,200 in attorneys' fees, payable within 30 days of service of notice of entry of this order.

4. 9:00 AM CASE NUMBER: C24-01447
CASE NAME: PAMELA MILLER VS. COSTCO WHOLESALE CORPORATION
HEARING ON SUMMARY MOTION
FILED BY: COSTCO WHOLESALE CORPORATION
TENTATIVE RULING:

Defendant Costco Wholesale Corporation ("Defendant") brings the instant motion for summary judgment ("Motion") against the complaint of plaintiff Pamela Miller ("Plaintiff"). Plaintiff asserts claims against Defendant for: (1) negligence; (2) premises liability; and (3) negligent hiring, training, supervision, and retention of employees or agents, arising out of an incident involving boxes falling on her foot at a Costco location.

For the reasons discussed below, the Court **DENIES** Defendant's Motion.

Legal Standard for Motion for Summary Judgment

Code of Civil Procedure ("CCP") § 437c, subds. (o)(1) and (p)(2) provide the relevant legal standard for deciding Defendant's Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the defendant's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

"[G]enerally speaking the issue of landowner's liability is one of fact." (*Ursino v. Big Boy Rests.* (1987) 192 Cal.App.3d 394, 398.) "Comparing the relative fault of plaintiff and defendants is a question of fact that must be resolved by a trier of fact and cannot be resolved by way of a summary judgment motion." (*Sanchez v. Hillerich & Bradsby Co.* (2002) 104 Cal.App.4th 703, 715.) "Foreseeability of the harm is of primary importance in establishing the element of duty. [Citations]. It is ordinarily a question of fact for the jury, and 'decided as a question of law only if, "under the undisputed facts there is no room for a reasonable difference of opinion." ' " (*Cohen v. Southland Corp.* (1984) 157 Cal.App.3d 130, 138.)

"[I]n considering the existence of 'duty' in a given case several factors require consideration including the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved. [Citations.] Inasmuch as foreseeability of harm is in most cases, this one included, a question of fact, and triable issues of fact as to foreseeability were present here, the motions by defendants for summary judgment should not have been granted." (*May v. Nine Plus Properties, Inc.* (2006) 143 Cal.App.4th 1538, 1548 [internal quotations omitted].)

"All doubts as to whether there are any triable issues of fact are to be resolved in favor of the

party opposing summary judgment.” (*Ingham v. Luxor Cab Co.* (2001) 93 Cal.App.4th 1045, 1049.)

Background:

Plaintiff alleges she was injured on June 27, 2022, when boxes fell onto her foot while she shopped at a Costco warehouse. (Plaintiff’s Response to Defendant’s Separate Statement of Undisputed Material Facts [“Response to Separate Statement”], No. 1.) Plaintiff was looking to pull a box containing an outdoor umbrella stand from the shelf. (*Id.*, at No. 2.) The box was approximately five feet off the ground and Plaintiff believed the box weighed between 50 – 100 pounds and that she had the ability to lift the box. (*Id.*, at Nos. 3-5.) As Plaintiff pulled the top box from where it was stacked, two boxes stacked below tilted out towards her and fell onto her left foot. (*Id.*, at No. 7.)

On June 3, 2024, Plaintiff filed the Complaint in this matter, which asserts claims for: (1) negligence; (2) premises liability; and (3) negligent hiring, training, supervision, and retention of employees. (Complaint, p. 1.) Plaintiff alleges that she was injured because Defendant “breached its duty of care by failing to properly secure and maintain the [boxes] in a manner that would prevent them from falling and causing harm to customers...” (Complaint, ¶ 20.)

Discussion

Summary of Arguments

Defendant argues that the subject boxes were open and obvious such that Defendant is not liable as a matter of law for failing to rectify or warn Plaintiff of the boxes. (MPA ISO MSJ, pp. 8-10.) Defendant goes on to assert that the subject accident was not foreseeable to Defendant. (*Id.*, at p. 10.) Defendant also argues that Plaintiff cannot meet her burden of showing causation because her “own conduct was the proximate cause of the subject accident” and that “Plaintiff is the sole cause of the accident.” (*Id.*, at pp. 11-12.) Defendant argues that “Plaintiff’s decision to pull on the box rather than lift it off of the stack or ask for assistance was the sole cause of the subject accident.” (*Id.*, at p. 12.) Defendant asserts that Plaintiff cannot show that Defendant breached a duty of care to her and cannot prove causation. (*Ibid.*)

Plaintiff asserts that the boxes were precariously placed by Defendant stacking them vertically and argues that triable issues of fact exist that preclude granting summary judgment. (Opposition, pp. 3-4.) Plaintiff argues that the prime concern in duty analysis is foreseeability and “the Plaintiff was an invitee onto the property as a customer and it was reasonably foreseeable to Defendant and its employees that stacking boxes vertically in a precarious position would create a hazard for its customers when they attempted to retrieve the top umbrella box for purchase.” (*Id.*, at pp. 3:28-4:12.)

Plaintiff portrays Defendant's argument that the boxes were an open and obvious condition as misplaced because the cases Defendant cites are distinguishable. (Opposition, pp. 4-5.) Finally, Plaintiff argues that the foreseeability of the harm and causation are factual issues for a jury to decide. (*Id.*, at pp. 6-7.)

On reply, Defendant argues that there are no disputed facts and that Plaintiff did not produce any evidence that would allow a trier of fact to find in her favor. (Reply, p. 2.) Defendant argues that a party opposing summary judgment cannot rely on speculation or conjecture to defeat the motion but must explain the nature of the dispute and cite admissible evidence supporting that contention. (*Ibid.*) Defendant asserts that it is entitled to judgment as a matter of law because Plaintiff cannot establish that Defendant breached a duty of care to her and that the breach caused the accident. (*Id.*, at p. 4.) Defendant argues that Plaintiff caused the accident because she pulled the top box towards her rather than lifting it or asking for help. (*Id.*, at p. 5.) "Shoppers using due care lift boxes off displays instead of tugging the boxes towards them . . ." and they ask for help if they cannot lift the box on their own. (*Ibid.*) Defendant cites to *Danieley v. Goldmine Ski Associates, Inc.* (1990) 218 Cal.App.3d 111, 121 [operator of ski area not responsible for inherent, obvious, and unavoidable risks of participating in the sport], *Krongos v. Pacific Gas & Electric Co.* (1992) 7 Cal.App.4th 387, 393 ["if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition," in this case danger of powerlines], and *Shanley v. American Olive Co.* (1921) 185 Cal. 552, 555 [landowner is not required to give to the invitee notice or warning of an obvious danger], as supportive of its position. (Reply, p. 5.)

Defendant argues that it was not foreseeable that someone might pull the box from the stack rather than lifting it, that the boxes were not dangerous if used in a reasonable manner and that Plaintiff failed to use reasonable care, which is what caused the incident. (Opposition, pp. 5-7.)

Defendant Has Not Met Its Initial Burden

As Defendant is moving for summary judgment, it has the burden of showing a complete defense or that one or more elements of Plaintiff's claims cannot be established. (Code of Civ. Proc., § 437c, subd. (p)(2).) Here, Defendant relies on seven undisputed material facts to assert that Plaintiff cannot prove the elements of breach of duty and causation. (MPA ISO MSJ, p. 12; Response to Separate Statement, Nos. 1-7.) The Court finds that these seven facts are not sufficient to so conclude.

The threshold determination of a duty owed is one of law, but foreseeability of the risk is a part of that determination and "[a]lthough foreseeability is normally a question of fact, it becomes a question of law where reasonable minds cannot differ." (*Hooks v. Southern Cal. Permanente Medical Group* (1980) 107 Cal.App.3d 435, 443.) Causation is also typically a

question of fact. (*Id.*, at p. 447 [“Ordinarily, proximate cause is a question of fact, but where the facts are undisputed and only one conclusion can be drawn, it is a question of law.”].)

The incident here involved Plaintiff approaching a display of products in boxes that were stacked vertically with their short side facing down and one in front of another, two wide and two tall. (Dunn Decl., ISO MSJ, ¶ 4, Plaintiff Deposition Exh. 1.) On top of each “row” of vertically stacked boxes there were two boxes resting on top horizontally that were being held up by the vertically stacked boxes. (*Ibid.*) The boxes appear to have weighed between 50-100 pounds. (Response to Separate Statement, No. 4.)

Defendant asks the Court to rule that Plaintiff’s “own conduct was the proximate cause of the accident” and that “Plaintiff is the sole cause of the accident.” (MPA ISO MSJ, pp. 11-12; Reply, p. 7.) However, “[c]omparing the relative fault of plaintiff and defendants is a question of fact that must be resolved by a trier of fact and cannot be resolved by way of a summary judgment motion.” (*Sanchez v. Hillerich & Bradsby Co.* (2002) 104 Cal.App.4th 703, 715.)

The Court finds that it cannot hold as a matter of law that under the undisputed facts there is no room for a reasonable difference of opinion as to whether any reasonable person would have lifted the box up before pulling it towards them—that is a question of fact. Whether Defendant acted properly when it placed two 50-100 pound boxes horizontally on top of rows of vertically placed boxes is also a question of fact. It is possible for a reasonable person to conclude that the incident may not have occurred if: (1) Defendant placed all the boxes horizontally; or (2) Defendant did not place boxes horizontally on top of the rows of vertically placed boxes. This is especially true considering the weight of the boxes and the rule that “[a]ll doubts as to whether there are any triable issues of fact are to be resolved in favor of the party opposing summary judgment.” (*Ingham v. Luxor Cab Co.* (2001) 93 Cal.App.4th 1045, 1049.)

Ruling

The Court **DENIES** Defendant’s motion for summary judgment.

5. 9:00 AM CASE NUMBER: C24-01467
CASE NAME: PROTECTIVE INSURANCE COMPANY VS. STERLING LOGISTICS, A CORPORATION
*HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL
FILED BY: STERLING LOGISTICS, A CORPORATION
TENTATIVE RULING:

The unopposed motion of **Ramin Mozaffar** to be relieved as counsel for Defendant Sterling Logistics, Inc. is **granted**. The motion was initially set for hearing on August 14, 2026, but was advanced per the order of the court to May 15, 2026. Notice of the new hearing date was